

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN THE GAMBIA

Complete Community Opposition How-To

This guide is built around The Gambia's distinctive lever — community science, litigation, protest, and the new freedom of a young democracy, used to force accountability from a foreign polluter even when the government wants the investment — and it names the bodies and terms you'll meet (the community reserve, the National Environment Agency and EIA, the courts, the Aarhus-style rights of a new democracy) in plain words.

INTRODUCTION & FRAMEWORK

When a foreign-owned **fishmeal factory** opened beside the village of **Gunjur's** lagoon — the country's first community-managed wildlife reserve, tended by local people for more than two decades — and began fouling the water until the lagoon ran red and dead fish washed ashore, the community did not stay silent, as it might have under the dictatorship it had lately shed. A local scientist **tested the water and documented the pollution**; the community's own environmental group gathered the evidence; the **National Environment Agency was pressed into ordering the factory to treat its waste**; the community **took the company to court**; and the villagers **protested in the streets**. The factory was not shut down, and the government, hungry for foreign investment, sided against the community more than once — even having the regulator's case settled out of court. But the community won real things: the pollution **documented and named**, the regulator **forced to act**, national and international attention drawn, a **precedent-setting case** brought, and — amid the wider wave of protest — the **temporary closure of two other fishmeal factories nearby**. A village that would once have been silenced made itself heard, and made a foreign polluter answer.

The Gunjur community turned back a foreign polluter with evidence and voice it supplied itself — the distinctive Gambian lever, because it does not depend on a friendly government, which a community fighting a wanted investor rarely has. A **community-managed reserve** gives a community both a stake and a platform. Major projects require an **environmental impact assessment (EIA)** and are overseen by the **National Environment Agency (NEA)**, which can be pressed to order a polluter to act. The **courts** are open, if slow, and lawful protest, community science, and litigation are the tools. And the **new democratic freedom**, hard-won after decades of dictatorship, gives a community the ability to organise, protest, and publish it never had before. But these tools have real limits, and this guide places the warnings first. The Gunjur community did **not** shut the factory down; the government, eager for foreign money, **sided against the community** and had its own regulator's case settled out of court; the community's lawsuit **stalled for years** with adjournment after adjournment; protesters were **arrested and charged**, so the work carried real legal risk; and the win was **partial and the struggle ongoing** — accountability and attention, not a project stopped. Weigh these hard before you begin, and plan for your people's safety and a long fight.

The Whole Strategy in One Idea

A polluting project looks unstoppable, but it's a chain of permissions and rules, and a chain breaks at its weakest link. A Gambian fight turns on **documented harm** (which forces the regulator's hand), on the **NEA and the EIA**, on the **courts**, on **lawful protest**, and on the **national and international attention** a young democracy now allows. Every one of those is a link you can grab — and the tested, documented proof of

harm runs through them all. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you begin — and weigh the risks hard — work out your real situation:

- **If you can test and document the harm, that evidence is your sharpest lever** — it doesn't need a friendly government, and it forces the regulator, the courts, and the press to reckon with a documented breach.
- **If you manage a reserve, you hold both a stake and a platform** — Gunjur's reserve was the ground of its fight.
- **If the government wants the investment, expect it to side against you** — so lean on evidence and voice, which you supply yourself, not on official goodwill.
- **If protest carries legal risk, plan for your people's safety** — Gunjur's protesters were arrested and charged; stay lawful and prepared.

Read the whole guide once before you move. Two habits run through it: **make the harm undeniable through community science**, and **use your new democratic voice fully and lawfully** — the regulator, the courts, the protest, and the press together — so accountability becomes unavoidable even where a full stop is not. That's what Gunjur achieved.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

A major project requires an **EIA** and is overseen by the **National Environment Agency (NEA)**, which can order a polluter to treat its waste or halt — the lever documented harm can force. A **community-managed reserve** gives local people a recognised stake. The **courts** review the legality of decisions and hear claims against a polluter, if slowly. And the government, hungry for investment, holds sway — so a community fighting a wanted investor rarely has official goodwill, and must rely on evidence and voice. Know which of these you can reach, and aim there.

How a Project Moves — and Where You Jump In

The EIA and the NEA. A project needs its assessment and NEA oversight. *Your opening — the sharpest here:* documented harm that forces the **NEA to order** the polluter to act.

The courts. *Your opening:* a lawsuit against the polluter — slow, but a precedent laid down and a marker set.

Protest and voice. *Your opening — the new-democracy lever:* lawful protest and publication that draw national and international attention.

The reserve. *Your opening:* your management of a reserve gives you standing, a platform, and a documented baseline.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who benefits** — the foreign owner and any local backing, because a foreign polluter is exposed to international attention. **What harm it does, provably** — because

tested, documented harm is the lever that doesn't need a friendly government. **What rules it breaks** — the EIA conditions, the environmental standards, the reserve's protection: a documented breach the regulator and the courts cannot easily ignore.

Who's Supposed to Be Watching

Each is an ally or an arena. The **NEA** oversees the EIA and can order a polluter to act. The **courts** hear claims. The reserve's **community management** gives standing. And The Gambia's **community environmental groups, local scientists, a newly free press, and international networks** are the forces that reach furthest — the combination Gunjur used to force a foreign polluter to answer.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises, and the honest floor is high here — the government often sides with the investor. What most moves them: whether the harm is tested and documented, whether the community can use its new voice fully and lawfully, and how badly the government wants the investment.

What you do	Roughly works	How long	Cost/Risk	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Community science (test + document harm)	30–55%	weeks–months	low	Undeniable, regulator-forcing proof
Press the NEA to order action	25–50%	months	low	Polluter ordered to treat waste / halt
Court challenge against the polluter	15–40%	years	mod	Precedent laid; marker set (slow)
Lawful protest + publication	25–50%	weeks–months	legal risk	Attention; pressure (arrests possible)
National + international attention	30–55%	months	low	A foreign polluter exposed
The reserve as stake and platform	20–45%	ongoing	low	Standing and a baseline
Everything together (documented harm, voice, reserve)	30–55%	months–years	mod	Accountability, attention, partial protection
Against a government-wanted investor	15–40%	months–years	mod	Documented, exposed, partly protected

The levers that move the needle most are **community science that makes the harm undeniable** and **the full, lawful use of a new democracy's voice** — the regulator, the courts, the protest, and the press together. Gunjur shows the realistic ceiling (a foreign polluter forced to answer, the regulator forced to act, a precedent, two other factories temporarily closed) and the honest floor (the factory kept running, the government sided with the investor, the lawsuit stalled, protesters were arrested). So aim for the harm documented and named, the regulator forced to act, a precedent laid, attention drawn, and partial protection — and plan for safety and a long fight.

On cost and risk: testing and documenting the harm, pressing the regulator, and organising are cheap; litigation is slow and costs more; and protest carries real legal risk

— *Gunjur's protesters were arrested and charged. The great strength is that evidence and voice don't need a friendly government. The great requirement is to make the harm undeniable, use the new voice lawfully, and plan for your people's safety.*

STEP 1: TARGET IDENTIFICATION

Being against "the factory" is weak. Being specific — this documented harm, this NEA breach, this exposed foreign owner — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the foreign owner, and any local backing — because a foreign polluter is exposed to international attention.

2. What harm does it do, and can you prove it? Document the pollution or damage — to the water, the reserve, the fish, the health of the people — and, crucially, **test it. Tested, documented harm is your sharpest lever**; Gunjur's scientist proved the lagoon was poisoned.

3. What rules does it break? The EIA conditions, the environmental standards, the reserve's protection — a documented breach the NEA and the courts cannot easily ignore.

4. What stage is it at, and what's the next deadline? Is an EIA in process? Is the harm ongoing (test it now)? Is there an NEA decision to press or challenge? These openings matter.

5. Who's your coalition — and who's at risk? The community environmental group, a local scientist, the newly free press, international networks — and a clear-eyed plan for the safety of those who protest.

What this looks like in real life. A foreign-owned plant pollutes a community's reserve and waters, with the government wanting the investment. The five questions yield: the exposed foreign owner; the provable harm (the lever); the rules it breaks; an ongoing harm to test and an NEA to press; and a coalition, with a safety plan. That's the Gunjur pattern — test and document the harm, force the regulator, sue, protest lawfully, and draw the world's eye.

STEP 2: DOCUMENTATION

The difference between a community that can force accountability and one that can't is tested, documented proof — the Gunjur lever. Build it in three layers.

Layer one: test the harm. The heart of it: **test the water, the soil, the air** — with a local scientist or a lab — and build a documented record of the pollution or damage. Tested proof is what forces even an investor-friendly regulator to act, grounds a lawsuit, and gives the press a story it cannot ignore.

Layer two: the paper trail and the rules. Get the EIA and its conditions, the NEA's decisions, the reserve's protection, and the environmental standards, and identify the **documented breach** — the rule the harm violates.

Layer three: the human and baseline record. Dated, located photographs and video of the harm — the red lagoon, the dead fish, the affected people — and, from your reserve management, the **baseline** of what the place was before. Walking into the NEA, the courts, the press, or the international community with tested harm, a documented breach, and a clear baseline is what makes accountability unavoidable.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Tested proof of harm** — water, soil, or air tests, with a local scientist or lab.
- **The EIA and its conditions, the NEA's decisions, the environmental standards** — from the NEA.
- **The reserve's protection and baseline** — from your community management.
- **The documented breach** — the rule the harm violates.
- **Dated harm evidence and named testimony** — photographs marked with date and place, and residents' statements — gathered with care for people's safety.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a community using its new voice — science, courts, protest, press — gives you the accountability Gunjur won. Build in four moves, with safety planned throughout.

Root it in the community and its reserve. Gunjur's fight grew from a community that had tended its reserve for over twenty years — the stake, the standing, and the baseline. Start there, united.

Build the community-science capacity. Enlist a local scientist and the community's environmental group to test and document the harm — the capacity that made Gunjur's proof undeniable.

Use every channel of the new democracy — lawfully. Press the NEA, bring the lawsuit, protest, and reach the press and international networks — all at once, so accountability comes from every side. Use the freedom the dictatorship denied, fully, but within the law.

Plan for safety, and build to last. Protest carries real legal risk — Gunjur's protesters were arrested and charged — and the courts are slow. Build clear roles, a secure archive, an inclusive way to decide, a plan for the safety of those exposed, and the endurance for a long, partial-win fight.

STEP 4: COMMUNITY SCIENCE, THE REGULATOR & THE COURTS

The Gambia's sharpest lever is tested, documented harm — deployed to the regulator, the courts, the protest, and the world at once.

Community Science — the Lever That Needs No Friendly Government

Your first and sharpest lever: **test and document the harm** — with a local scientist or lab — so that it is undeniable. This is the Gunjur breakthrough: hard proof of pollution that even an investor-friendly government cannot ignore entirely, because it can be brought to the regulator, the courts, the press, and the international community all at once, and because it converts a "complaint" into a documented breach of the country's own rules.

The NEA and the EIA

Bring the documented harm to the **National Environment Agency**, which can **order the polluter to treat its waste or halt** — as Gunjur forced it to. Attack a defective EIA and any breach of its conditions. The regulator's own action, once forced, is a powerful marker.

The Courts and Lawful Protest

Bring a **lawsuit** against the polluter — slow, and prone to stalling, but a precedent laid down and a marker set. And use **lawful protest and publication** to draw national and international attention — powerful, but carrying real legal risk that must be planned for.

The Honest Limits

Straight talk: community science, the regulator, the courts, and protest are real levers, but the government often sides with the investor (even settling the regulator's case), the courts stall for years, protest brings arrests, and the win is usually partial — accountability, not a project stopped. So use the levers — tested harm, the NEA, the courts, lawful protest, and international attention — plan for safety, and count the harm documented and named, the regulator forced to act, a precedent laid, attention drawn, and partial protection as real wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Harm becomes a documented breach. Not "the factory pollutes" but *"tested proof shows the water poisoned beyond the legal standard — a documented breach the regulator must act on."*

A foreign owner becomes internationally exposed. *"A foreign company poisoning a community's reserve — a story the world should hear."*

The reserve becomes standing. *"We have managed and protected this reserve for over twenty years — and can prove what it was and what they've done to it."*

A partial win becomes a precedent. *"The regulator was forced to act and a case was brought — a marker that this cannot be done with impunity."*

Match it to the venue: the tested harm and breach to the NEA and the courts; the exposed foreign owner to the international press; the reserve and baseline to the standing and the story; the precedent to the public record.

STEP 5: MEDIA STRATEGY

In The Gambia, the newly free press and international attention are a distinctive lever — under the old dictatorship they were unthinkable — and they expose a foreign polluter and pressure an investor-friendly government. Community groups and international networks make the media front reach far.

Lead with the tested harm and the reserve, not procedure. Not "the NEA breached its process" but "a foreign factory poisoned a community's own reserve — the lagoon ran red, the fish died, and a scientist proved it." Use your strongest material: the test results, the red lagoon and dead fish, the baseline, and community voices.

Work several audiences at once — reach the world. Gambian press builds domestic pressure; international networks and press expose the foreign polluter, where it is most vulnerable. Make it easy: captioned photos, accurate summaries, the test data, careful testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit hard-won proof. And protect people — protest carries real legal risk, so plan for safety and let the community lead its own story within the law.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything; and mind your people's safety.

8A — Information request (to the NEA).

Subject: Request for the EIA and monitoring — [factory/project].

"We, residents of [village], request the EIA and its conditions, the environmental standards, and the monitoring records for [factory] at [location], beside our community reserve. [Contact.]"

8B — Documented harm (to the NEA).

Subject: Documented pollution — [factory].

"We, residents of [village], report tested proof that [factory] is polluting [our reserve/waters] beyond the legal standard: [the test results]. We ask the NEA to order it to treat its waste or halt. [Attach the tests.]"

8C — To a local scientist / lab.

Subject: Water/soil testing — [location].

"Our community's reserve at [location] appears poisoned by [factory]. We ask your help to test the [water/soil/air] and document the harm. [Contact.]"

8D — To a lawyer (court challenge).

Subject: Possible claim — [factory] pollution.

"Our community faces documented pollution from [factory], and the regulator's action has [been limited/settled]. We've gathered [the tests, the breach, the baseline]. We ask your advice on a claim. [Contact and evidence summary.]"

8E — To a community/environmental group / international network.

Subject: Foreign polluter harming our reserve — [factory].

"Our community's reserve is being poisoned by [factory]. We've tested and documented the harm. We ask for your help with the evidence, the case, and international attention, as at Gunjur. [Contact and evidence summary.]"

8F — To the company / its home country.

Subject: Documented pollution and reputational risk — [factory].

"We are the community affected by [factory] at [location]. Tested proof shows it polluting our reserve beyond the legal standard. This carries real legal and reputational risk, including internationally. [Contact and evidence summary.]"

8G — Letter to the (international) press.

Subject: [Community] confronts a foreign polluter over its poisoned reserve.

"For over twenty years the people of [village] tended [our reserve]. Now [factory] has poisoned it — and we have the tests to prove it. We can provide the data, photographs, and interviews. [Contact.]"

8H — Rallying the community (and safety).

Subject: We can make them answer — and let's stay safe doing it.

"[Factory] is poisoning our reserve. At Gunjur, a community tested the harm, forced the regulator, went to court, and drew the world's eye — a foreign polluter was made to answer. Let's do the same, using our voice fully and lawfully, and keeping our people safe. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean — mindful of safety — do these six things, in order:

1. **Test and document the harm at once — that tested proof is your whole case.**
2. **Bring it to the NEA and demand it order the polluter to act (8B).**
3. **Get the EIA and monitoring records (8A), and find the documented breach.**
4. **Reach a community/environmental group and international network (8E).**
5. **Consider a lawsuit as a marker (8D), and protest lawfully — with a safety plan.**
6. **Expose the foreign polluter to the world (8G).**

Even lean, those six make the harm undeniable and use your new voice — the Gunjur template.

WHEN THE SYSTEM IS TILTED

The Gambia's field is badly tilted toward the investor, so plan for it.

When the government sides with the investor. Expect it — Gunjur's government even settled its own regulator's case. Lean on evidence and voice, which you supply yourself, and bring the documented harm to the regulator, the courts, the press, and the world all at once.

When the courts stall. They will — Gunjur's suit languished for years. Treat litigation as a slow marker laid down, not a quick remedy, and don't let it become your only front.

When protest brings arrests. It can — Gunjur's protesters were arrested and charged. Stay lawful, plan for your people's safety, and don't let the fight put anyone needlessly at risk.

When the win is only partial. It usually is — accountability, attention, and partial protection, not a project stopped. Value those wins, keep the pressure on, and settle in for a long struggle.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

The Gambia, emerging from decades of dictatorship, has serious concerns about the capture of investment deals and regulators, so this matters.

How to spot it. Regulators' cases quietly settled; EIAs written for the investor; approvals against the environmental evidence; benefits to the connected while communities bear the pollution.

Who's supposed to guard against it. Post-dictatorship anti-corruption and audit efforts examine public money and conduct. The **courts** can review a tainted decision. **International bodies and the press** can strip legitimacy from a foreign polluter. And The Gambia's **community groups, scientists, and newly free**

press have exposed captured deals.

How to fight it safely. Document precisely and factually — how the harm was proven, how a case was settled or a rule bent, who benefits — and keep clear the line between what you can prove and what you suspect. In a young democracy, route serious evidence to the courts, auditors, international bodies, and trusted journalists rather than making accusations you can't back, and protect those exposed. Pair the exposure with the documented-harm case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The tested harm is your case; the documented breach aims it; the community and its reserve are the muscle; the NEA, the courts, the protest, and the press press it from every side at once; international attention exposes the foreign polluter. Together they multiply. One at a time, they stall — and plan for safety throughout.

Early on (weeks 1–8): test and document the harm; bring it to the NEA; get the EIA and standards; root the fight in the community and its reserve; build a coalition and a safety plan.

In the thick of it (months–year+): press the NEA to order action; bring the lawsuit as a marker; protest lawfully; expose the foreign polluter nationally and internationally.

The long haul (year+): carry the slow litigation; keep the pressure and the attention on; hold the line for the harm documented and named, the regulator forced to act, a precedent laid, attention drawn, and partial protection — and keep your people safe.

FINAL ASSESSMENT

Forcing accountability in The Gambia can be done — a fishing village, newly free to speak, made a foreign polluter answer, forced its own regulator to act, and laid down a precedent, even without a full stop. Hold both truths. The Gambia's distinctive power is real: community science, litigation, protest, and the new freedom of a young democracy can force accountability from a foreign polluter — a lever that depends not on a friendly government, which you rarely have, but on evidence and voice, which you can supply yourself. And the constraints are real and large: a government that sides with the investor, courts that stall for years, protest that brings arrests, and wins that are partial and hard-won.

Here's the discipline that wins what can be won. Make the harm undeniable: test the water, the soil, the air, and build a documented record — the tested proof that even an investor-friendly regulator cannot ignore. Bring it to the NEA and force it to order the polluter to act; lay down a marker in the courts; protest lawfully; and expose the foreign polluter to national and international attention — all at once, so accountability comes from every side. Use the new voice the dictatorship denied you, fully but within the law, and plan always for your people's safety, because protest here carries real risk. Value the partial wins — the harm named, the regulator forced, the precedent laid, the attention drawn, the protection won — and settle in for a long struggle. That's what Gunjur did — community science and a new democracy's voice, deployed from every side. So can you.